

(2) As from the date on which a petroleum-spirit licence is transferred—

- (a) the licence shall authorise the keeping of petroleum-spirit by the transferee and shall cease to authorise the keeping thereof by any other person;
- (b) the said Act shall have effect in relation to the licence as if for references in the said Act to the person to whom the licence was granted there had been substituted references to the transferee, and the licence shall have effect, unless the context otherwise requires, as if the like substitution had been made in the licence;
- (c) subject as aforesaid, the licence shall have the like effect in all respects as if no transfer had been made.

(3) The said Act shall have effect, and shall be deemed always to have had effect, as if the foregoing provisions of this section had been contained in the said Act as originally enacted.

(4) In respect of a transfer of a petroleum-spirit licence made after the commencement of this Act, there shall be payable by the transferee to the local authority or to the Secretary of State, as the case may be, a fee of two shillings and sixpence.

Short title,
citation and
construc-
tion.

2. This Act may be cited as the Petroleum (Transfer of Licences) Act, 1936, and shall be construed as one with the Petroleum (Consolidation) Act, 1928, and that Act and this Act may be cited together as the Petroleum (Regulation) Acts, 1928 and 1936.

CHAPTER 28.

An Act to provide for the application of the Shops Acts, 1912 to 1934, to premises and places where the business of lending books or periodicals is carried on for purposes of gain.

[14th July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same, as follows :—

1.—(1) For the purposes of the Shops Acts, 1912 to 1934, the expression “retail trade or business” shall include the business of lending books or periodicals when carried on for purposes of gain; and accordingly subsection (1) of section nineteen of the Shops Act, 1912, shall be amended by inserting after the words “or intoxicating liquors” the words “the business of lending books or periodicals when carried on for purposes of gain.”

Extension to lending libraries of the Shops Acts, 1912 to 1934.

2 & 3 Geo. 5. c. 3.

(2) Subsection (2) of the said section nineteen shall be amended by inserting after the words “from which no private profit is derived” the words following :—

“or to any library at which the business of lending books or periodicals is not carried on for purposes of gain other than that of making profits for some philanthropic or charitable object (including any religious or educational object) or for any club or institution which is not itself carried on for purposes of gain.”

(3) Notwithstanding anything in the foregoing provisions of this Act, the Shops Acts, 1912 to 1934, shall not apply to any library which, on the first day of January, nineteen hundred and thirty-six, was carried on by a society registered under the Industrial and Provident Societies Acts, 1893 to 1928, mainly for the purpose of affording to its members means of education or recreation, so long as the following conditions are complied with, that is to say :—

- (a) that the library continues to be carried on by the society mainly for the purpose aforesaid;
- (b) that no pecuniary profit is directly derived from the lending of books or periodicals at or from the library;
- (c) that no person employed about the business of any shop occupied by the society is engaged about the business of the library.

2.—(1) This Act may be cited as the Shops Act, 1936, and this Act and the Shops Acts, 1912 to 1934, may be cited together as the Shops Acts, 1912 to 1936.

Short title, citation, extent and commencement.

(2) This Act shall not extend to Northern Ireland.

(3) This Act shall come into operation on the first day of January, nineteen hundred and thirty-seven.

CHAPTER 29.

An Act to remove the limitation of His Majesty's power to revoke or amend the Malta Constitution Letters Patent, 1921; to declare the validity of certain Ordinances of the Governor of Malta; and for purposes connected with the matters aforesaid. [14th July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Power to
revoke or
amend the
Malta Con-
stitution
Letters
Patent,
1921.

1. The Malta Constitution Letters Patent, 1921, shall, notwithstanding any limitation imposed by section sixty-eight thereof, have effect as if there were thereby reserved to His Majesty full power to revoke or amend by further Letters Patent all or any of the provisions of the Malta Constitution Letters Patent, 1921, as subsequently amended.

Validity of
certain
Ordinances
of Governor
of Malta.
22 & 23
Geo. 5. c. 43.

2. It is hereby declared that all Ordinances of the Governor of Malta enacted and promulgated during the period between the commencement of the Malta Constitution Act, 1932, and the commencement of this Act were validly enacted and promulgated and were within the powers of the Governor.

Short title,
commence-
ment and
repeal.

3.—(1) This Act may be cited as the Malta (Letters Patent) Act, 1936, and shall come into operation on the fifteenth day of July, nineteen hundred and thirty-six.

(2) Sections one to four of the Malta Constitution Act, 1932, are hereby repealed.